

Court No. - 29

Case :- WRIT - C No. - 13068 of 2019

Petitioner :- Perfect Propbuild (P) Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajai Shankar Pathak, Prateek Tyagi

Counsel for Respondent :- C.S.C., Amit Krishna

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

The petitioner wants a permanent single point electricity connection of 3500 KW at the Plot No. GH-03B, Sector-77, Noida, District Gautam Budh Nagar.

Smt Usha Kiran, learned counsel appearing for respondents no. 2 to 4 wants to seek instructions as to why electricity connection has not been sanctioned.

She may do so within three days.

Put up on Friday, the 19th April, 2019, before appropriate Bench, in the additional cause list.

Order Date :- 15.4.2019

M.A.Ansari

Court No. - 21

Case :- WRIT - C No. - 13068 of 2019

Petitioner :- Perfect Propbuild (P) Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajai Shankar Pathak, Prateek Tyagi

Counsel for Respondent :- C.S.C., Amit Krishna, Usha Kiran

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Rohit Ranjan Agarwal, J.

Put up on 09.05.2019 in the additional cause list.

Order Date :- 7.5.2019

MAA/-

Case :- WRIT - C No. - 13068 of 2019

Petitioner :- Perfect Propbuild (P) Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajai Shankar Pathak, Prateek Tyagi

Counsel for Respondent :- C.S.C., Amit Krishna, Usha Kiran

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Heard Shri Ajay Shankar Pathak, learned counsel for the petitioner, learned standing counsel for the respondent no. 1 and Smt. Usha Kiran, learned counsel for the respondents no. 2 to 4.

The petitioner in the writ petition is seeking a direction to the respondents to provide Permanent Single Point Electricity Connection of 3500 KW for Plot No. GH-03B, Sector-77, Noida, District Gautam Budh Nagar.

Learned counsel for the respondents referring to the Electricity Supply Code, 2005 submits that there has been amendment in Regulation 4.9 on 10.8.2018 whereby all connections will now be granted only on multiple point for supply of power to individual owner/occupants by the licensee. Learned counsel for the respondents has placed before us the amended clause 4.9 of the Electricity Supply Code, 2005 which has been brought into force through amendment order dated 10.8.2018. Clause 4.9 as amended reads as under:

"4.9 Part A : New Electricity connection in the Multi-story Buildings/Multiplex/Marriage Halls/Colonies to be developed by development Authorities and/or Private Builders/Promoters/Colonizers/Institutions/Individual applicants. (Approved by Licensed Inspectors)

(a) All new connections domestic/non-domestic Multistoried Buildings/Multiplex/Marriage Halls/Cooperative Group Housing Societies/Colonies shall be released only on multiple point for supply of power to individual owners/occupants from licensee.

(b) The role of developer/development authority shall be limited to development of electrical infrastructure necessary to make available electricity supply to individual connections from the system of the distribution licensee. Accordingly, in the initial phase, the developer/development authority shall seek a temporary connection from the license for developing the electrical infrastructure. Once, the electrical infrastructure is developed, the developer shall hand over the same including

bus bar and other central equipment to the licensee, which shall remain under the control of the licensee. Upon successful completion and handing over the electrical infrastructure to licensee, all occupiers/consumers shall apply to the licensee for individual connections whereas, the developer/RWA shall apply for separate connections(s) for common facilities."

Learned counsel for the petitioner submitted that he had entered into an agreement with the Electricity Department in the year 2014 as would be clear from the agreement for supply of electrical energy dated 26.7.2014, Annexure-5 to the writ petition. This agreement between the petitioner and the respondents does not anywhere state that the agreement refers to provide of Permanent Single Point Electricity Connection. Learned counsel for the petitioner could not point out to us from any clause of the agreement that the agreement relates to providing of a Permanent Single Point Connection to the petitioner.

Smt. Usha Kiran, learned counsel for the respondents then referred to paragraph 3(I) of the agreement which states that the consumer shall abide and be bound by all the terms and conditions of the Electricity Supply Code 2005 approved by the Commission and the amendments/revisions thereto, and the provisions of the Act together with the rules framed under the Act and Indian Electricity Rules 1956 including any modifications thereof, in so far as they are applicable to the consumer. Paragraph 3(I) of the agreement reads as under:

"3. THE CONSUMER HEREBY UNDERTAKES, REPRESENTS, ASSURES, WARRANTS, AGREES AND COVENANTS WITH THE LICENSEE AS FOLLOWS:

I. Consumer shall abide and bounded by all the terms and condition of the Electricity Supply Code 2005 approved by the Commission and the amendments/revisions thereto, and the provisions of the Act together with the rules framed under the Act and Indian Electricity Rules 1956 including any modifications thereof, in so far as they are applicable to the consumer."

From the bare reading of paragraph 3(I) of the agreement between the petitioner and the Electricity Department we find that the petitioner is bound by all the terms and conditions of the Electricity Supply Code, 2005 as well as the Electricity Act and Rules framed thereunder, as may be applicable from time to time with all amendments and revisions.

In this view of the matter we find that after the amendment of

10.8.2018 the petitioner cannot be granted a Permanent Single Point connection and such connection can only be released on multiple point for supply to individual owner or occupants.

We therefore do not find any good ground for issuance of a mandamus directing the respondents to provide a Permanent Single Point Electricity Connection to the petitioner. The writ petition lacks merit and is accordingly **dismissed**.

Order Date :- 9.5.2019

o.k.